

Website & Direct-Booking Agreement

Professional Services Agreement between Williams Digital and the Owner of The Big Chill vacation rental

Effective Date: Upon Acceptance · **Version:** 1.0 · **Jurisdiction:** State of Alabama

Scope of Services

The Service Provider agrees to design, develop, and deploy a custom direct-booking website for the Owner's vacation-rental property, connected to the Owner's property-management system for availability and reservations. The project includes the following deliverables:

- ♦ **Public Marketing Website** — A branded, mobile-responsive website including a home page, property overview, photo gallery, local Auburn guide, guest reviews, an availability calendar, and a frequently-asked-questions page.
- ♦ **Direct-Booking Flow** — A guest-facing booking experience that checks real-time availability, quotes nightly rates, fees, and taxes, collects guest and payment information, and confirms the reservation.
- ♦ **OwnerRez Integration** — Connection of the website to the Owner's **OwnerRez** account so that availability and reservations remain synchronized across Airbnb, VRBO, and direct bookings through a single shared calendar.
- ♦ **Payment Processing (Stripe)** — Configuration of secure card payment for direct bookings through the Owner's Stripe account, so that direct-booking payments are deposited to the Owner.
- ♦ **Owner Dashboard** — A private, unlisted owner view presenting the master calendar (color-coded by booking source), upcoming reservations, reservation details, and revenue and occupancy overview.
- ♦ **Responsive Design** — All pages built to display properly on desktop, tablet, and mobile devices, including a persistent mobile booking bar.
- ♦ **Content Loading** — Placement of the Owner's supplied photography, property details, and written content into the website.

- ◆ **Domain & Hosting Setup** — Connection of the Owner's registered domain and deployment of the website to hosting managed by the Service Provider, including SSL/HTTPS.
- ◆ **SEO Foundations** — Page titles, meta descriptions, and basic on-page search-engine optimization aimed at direct-booking discovery.

Property-Management System — OwnerRez

The direct-booking and calendar features of the website depend on the Owner maintaining an active **OwnerRez** account (or equivalent property-management system approved in writing by the Service Provider), with the Owner's Airbnb and VRBO listings connected to that account.

OwnerRez serves as the **source of truth** for availability and reservations. The Service Provider does not create or maintain a separate calendar and is not responsible for availability errors, rate errors, or double-bookings originating within OwnerRez, Airbnb, VRBO, or any other connected channel.

The Owner is responsible for the OwnerRez subscription and its fees, billed to the Owner directly by OwnerRez, and for keeping the property's channel connections active.

Payments & Booking Terms — Owner's Responsibility

All direct-booking payments are processed through the **Owner's own Stripe account** and are deposited to the Owner. The Service Provider does not hold, receive, or have access to guest funds. The Owner is solely responsible for setting nightly rates, fees, taxes, minimum-stay rules, cancellation policies, guest communications, lodging-tax collection and remittance, and all obligations arising from a guest's stay. The website presents the terms the Owner configures; it does not set them.

Content Accuracy & Approval

All photography, property descriptions, rates, policies, and local recommendations used on the website will be drawn from material supplied or approved by the Owner. The Owner is responsible for reviewing and confirming the accuracy of all content — including rates, fees, taxes, sleeping capacity, and policies — prior to launch.

Revision Policy

The project includes up to **three (3) rounds of revisions** during the design and development phase. A revision round consists of a consolidated set of feedback submitted at one time. Additional revision rounds beyond the included three will be billed at the Service Provider's hourly rate of **\$50/hour**. Revisions must be requested within seven (7) days of receiving a design proof or deliverable; otherwise, the deliverable will be considered approved.

Change Orders & Scope Changes

Any work requested by the Owner that falls outside the scope described above — including additional pages, additional properties, custom integrations, or new features — will require a written **Change Order**. The Service Provider will provide a quote for the additional work, and no work will commence until the Owner approves the Change Order in writing. Change Orders may affect the project timeline and will be billed separately from the build fee.

Fees and Payment

In consideration of the services provided, the Owner agrees to compensate the Service Provider as follows:

ITEM	AMOUNT
Deposit — 50%, due upon acceptance of this Agreement. Work begins after the deposit is received.	\$375.00
Final Payment — 50%, due upon launch of the live website.	\$375.00
Total Build Fee	\$750.00 USD

Build Fee — \$750.00 USD

A one-time build fee of **\$750.00 USD** covers the complete website design, development, content loading, OwnerRez integration, Stripe direct-booking configuration, owner dashboard, domain and hosting setup, SEO foundations, and launch, as described in Section 2. This fee is split into two equal installments of **\$375.00**: a **50% deposit due upon acceptance** of this Agreement, and the remaining **50% due upon launch** of the live website.

Monthly Hosting, Automation & Maintenance — \$30.00 USD / month

A recurring monthly fee of **\$30.00 USD** covers website hosting, SSL certification, the **server-side booking automation** (the OwnerRez calendar-sync connection and the direct-booking checkout that keep availability accurate and reservations flowing), security and software updates, uptime monitoring, backups, and **minor content updates** — such as correcting text, swapping an existing photo, updating a rate note, or adjusting contact details.

The monthly fee begins on the date the website is launched live and continues until cancelled by either party with **thirty (30) days written notice**.

The monthly fee does **not** include the Owner's OwnerRez subscription, the Owner's Stripe processing fees, seasonal photo or content overhauls, or any work constituting a new page, new feature, additional property, or redesign.

Third-Party Costs — Paid by the Owner

The Owner is responsible for costs paid directly to third parties, which are separate from and in addition to the fees above:

- **Domain registration** — The Owner purchases and maintains their own domain through GoDaddy or another domain registrar of their choosing (typically \$12–\$25 per year, billed by the registrar directly).
- **OwnerRez subscription** — Maintained by the Owner and billed by OwnerRez directly.
- **Stripe processing fees** — Standard per-transaction card-processing fees charged by Stripe on direct bookings, deducted by Stripe from the Owner's payouts.

Payment Methods & Terms

Payment shall be submitted via the secure payment link(s) provided by the Service Provider, or by another method mutually agreed upon by the parties. Payment details and instructions will be included on the invoice.

The deposit is due in full upon acceptance of this Agreement. The final build payment is due upon launch of the live website. The monthly fee begins upon launch and continues until cancelled. A late fee of **1.5% per month** may be assessed on any balance remaining unpaid beyond thirty (30) days from the invoice date. The Service Provider reserves the right to delay or suspend services for any account with an outstanding balance exceeding thirty (30) days.

Cancellation & Refund Policy

Should the project be cancelled by the Owner after work has commenced, the **\$375.00 deposit is non-refundable**, as it covers discovery, planning, and development work already performed. If the project is cancelled prior to launch, no final build payment shall be owed. The monthly hosting, automation, and maintenance fee may be cancelled at any time with thirty (30) days written notice. If the Service Provider cancels before any work has been performed, the full deposit will be refunded.

Content Rights & Intellectual Property

The Owner Retains All Rights in Their Content

All photographs, property descriptions, branding, and materials supplied for or used on the website remain the **exclusive property of the Owner**. Nothing in this Agreement transfers any ownership interest in the Owner's content to the Service Provider.

The Service Provider is granted a **limited, non-exclusive license** to use, crop, and display the Owner's content **solely** for the purpose of designing, building, testing, and maintaining the website described in this Agreement. This license terminates upon termination of this Agreement, except as provided under Portfolio & Credit Rights below.

Ownership of Website Deliverables

Upon receipt of full payment of the build fee, the Owner shall own all **custom-designed website deliverables**, including the website design, page layouts, templates, and source code created specifically for the Owner under this Agreement. The Service Provider retains the right to use general techniques, tools, frameworks, and methodologies developed or utilized during the engagement, including the underlying booking-integration components that are reused across the Service Provider's clients. Third-party assets and services (fonts, open-source software, OwnerRez, Stripe) remain subject to their respective license and service agreements.

Portfolio & Credit Rights

The Service Provider retains the right to display and reference **the completed website design** in its professional portfolio, marketing materials, case studies, and social media, including screenshots of the property as presented within the website design. This right does not extend to any commercial use of the Owner's photography divorced from the website design. The Owner may withdraw this portfolio consent at any time upon written notice, after which the Service Provider will remove the material from its own channels within a reasonable period.

A small, unobtrusive credit line (e.g., "Site by Williams Digital") may be placed in the website footer. If the Owner wishes to opt out of the credit line, this must be agreed upon in writing prior to launch.

Domain, Hosting & Accounts

The domain shall be **owned by the Owner** and registered in the Owner's name and contact information. The Owner's OwnerRez and Stripe accounts remain the Owner's property at all times. Hosting managed by the Service Provider remains under the Service Provider's administrative control for the duration of the monthly service engagement. Upon termination and settlement of all outstanding balances, the Service Provider will provide the Owner with a complete copy of the website files and source code and will assist with transferring hosting to the Owner or a provider of the Owner's choosing within a reasonable period.

Project Timeline

The Service Provider will aim to complete the project within approximately **three to four (3–4) weeks** from receipt of the signed Agreement, the deposit, and the Owner's OwnerRez and Stripe access, subject to timely delivery of content and feedback from the Owner:

- ♦ **Week 1** — Brand and design review, content and photo gathering, and connection to the Owner's OwnerRez and Stripe accounts.
- ♦ **Week 2** — Build-out of all pages, content loading, and configuration of the booking flow.
- ♦ **Week 3** — Availability-sync testing, test bookings end-to-end, dashboard setup, SEO configuration, and Owner review.
- ♦ **Week 4** — Launch, walkthrough, and the start of the post-launch support window.

This timeline is a good-faith estimate. Delays in providing photos, content, feedback, approvals, or required OwnerRez/Stripe access may extend the schedule accordingly, and the Service Provider shall not be held liable for such delays.

Owner Responsibilities & Support

To facilitate the effective delivery of services, the Owner agrees to:

- ♦ Purchase and maintain their own **domain** through GoDaddy or another registrar, and provide the access needed to connect it.
- ♦ Maintain an active **OwnerRez** account with Airbnb and VRBO connected, and an active **Stripe** account, and grant the access required to integrate them.
- ♦ Provide timely, accurate, and complete content, including **high-quality property photography**, descriptions, rates, fees, taxes, and policies.
- ♦ Confirm the accuracy of all rates, fees, taxes, sleeping capacity, and booking policies prior to launch.
- ♦ Designate a primary point of contact and respond to design proofs and approval requests within a reasonable timeframe.
- ♦ Warrant that all photos, content, and materials provided are owned by the Owner or properly licensed, and that the Owner holds the legal right to rent the property on a short-term basis in

compliance with applicable local ordinances, HOA rules, and lodging-tax requirements.

Delays or failure to meet these responsibilities may impact the timeline and effectiveness of the services provided.

Post-Launch Support

The Service Provider will provide **thirty (30) days of complimentary post-launch support** beginning on the date the website goes live. This support covers bug fixes and configuration questions. Ongoing hosting, automation, maintenance, and minor content updates thereafter are covered by the monthly fee described in Section 3.

Project Pause & Inactivity

If the Owner becomes unresponsive or fails to provide requested materials, access, feedback, or approvals for a period of **fourteen (14) consecutive days**, the project may be placed on hold. Projects paused for more than **sixty (60) days** may be treated as cancelled under the Cancellation & Refund Policy outlined in Section 3.

Launch Sign-Off

Prior to the public launch of the website, the Service Provider will present the completed site to the Owner for **final review and approval**, including a test of the end-to-end booking flow. The Owner shall have five (5) business days to review and provide written approval or submit final revision requests. Upon approval, the Service Provider will proceed with launch and the final build payment of **\$375.00** will become due. If the Owner does not respond within this period, the website will be deemed approved.

Term and Termination

This Agreement shall become effective upon acceptance by the Owner and shall remain in effect until cancelled as provided below.

Termination by Either Party

Either party may terminate this Agreement at any time by providing **thirty (30) days written notice** to the other party. Upon termination, the Service Provider will provide the Owner with all completed deliverables and the source code created to date, and assist with a reasonable transition of hosting.

Termination for Cause

Either party may terminate this Agreement immediately upon written notice if the other party materially breaches any provision and fails to cure such breach within five (5) days of receiving written notice.

Effect of Termination

Upon termination, the Owner shall pay the Service Provider for all services rendered up to the effective date of termination. The Service Provider will deliver all completed work product and provide reasonable assistance for transition. The Owner's rights in their content, domain, OwnerRez account, and Stripe account survive termination in full.

Limitation of Liability

The Service Provider provides professional digital services with reasonable care and industry-standard practices. To the maximum extent permitted by applicable law:

- ♦ The Service Provider shall not be liable for any indirect, incidental, special, consequential, or punitive damages arising out of or related to this Agreement, including lost bookings or lost revenue.
- ♦ The Service Provider's total aggregate liability under this Agreement shall not exceed the total fees paid by the Owner under this Agreement.
- ♦ The Service Provider is not responsible for third-party service disruptions, including hosting outages, domain registrar issues, or outages of or changes to OwnerRez, Airbnb, VRBO, or Stripe.

- ♦ The Service Provider is not responsible for **double-bookings, availability errors, rate errors, or overbookings** that originate within OwnerRez or any connected channel, nor for the sync latency of any third-party channel.
- ♦ The Service Provider is not responsible for the collection, remittance, or accuracy of lodging or occupancy taxes, or for the Owner's compliance with short-term-rental ordinances, HOA rules, or licensing requirements.
- ♦ The Service Provider makes no guarantees regarding specific business outcomes, bookings, revenue, search engine rankings, or website traffic resulting from the services provided.

Warranty Disclaimer

All services and deliverables are provided "as-is" and "as-available." The Service Provider makes no warranties, express or implied, including but not limited to warranties of merchantability, fitness for a particular purpose, or uninterrupted, error-free operation of any website, booking flow, or integration.

Owner Content & Compliance Indemnification

The Owner agrees to indemnify, defend, and hold harmless the Service Provider from any claims, damages, losses, liabilities, or expenses arising from content, images, or materials provided by the Owner; from any guest stay, dispute, or booking; or from the Owner's operation of the short-term rental, including any claim relating to taxes, licensing, ordinances, or third-party rights.

Accessibility Disclaimer

The Service Provider builds websites using modern web standards and best practices to support accessibility. However, full compliance with WCAG 2.1 AA or the ADA is not guaranteed unless a dedicated accessibility audit has been explicitly contracted in a separate Statement of Work.

Confidentiality

Both parties acknowledge that in the course of this engagement, confidential information may be disclosed, including account credentials, guest information, booking and revenue records, and business records. Each party agrees to:

- ♦ Maintain the confidentiality of all such information.
- ♦ Not disclose confidential information to third parties without prior written consent.
- ♦ Use confidential information solely for the purposes of fulfilling obligations under this Agreement.

The parties specifically acknowledge that **guest personal information and booking records** shall be handled with care and not shared, published, or referenced by the Service Provider except as necessary to perform the services.

This confidentiality obligation shall survive the termination of this Agreement and continue for a period of **three (3) years** following termination or expiration.

Dispute Resolution & Governing Law

In the event of any dispute, the parties agree to first attempt to resolve the matter through **good faith negotiation**. If the dispute cannot be resolved within thirty (30) days, the parties agree to submit the dispute to **binding arbitration** in accordance with the rules of the American Arbitration Association, conducted in the State of Alabama.

This Agreement shall be governed by and construed in accordance with the **laws of the State of Alabama**, without regard to its conflict of laws principles. Any legal proceedings related to this Agreement shall be conducted within the appropriate jurisdictions of the State of Alabama.

General Provisions

- ♦ **Entire Agreement** — This Agreement constitutes the entire agreement between the parties and supersedes all prior agreements, understandings, and representations.
- ♦ **Amendments** — This Agreement may only be amended or modified in writing, signed by both parties.

- ♦ **Independent Contractor** — The Service Provider is an independent contractor and not an employee, partner, agent, or representative of the Owner.
- ♦ **Severability** — If any provision is found to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.
- ♦ **Waiver** — The failure of either party to enforce any right or provision shall not constitute a waiver of such right.
- ♦ **Assignment** — Neither party may assign this Agreement without the prior written consent of the other party.
- ♦ **Force Majeure** — Neither party shall be liable for delays or failures in performance resulting from causes beyond their reasonable control.

Acknowledgment & Signatures

By signing below, each party acknowledges that they have read, understood, and agree to be bound by the terms and conditions set forth in this Website & Direct-Booking Agreement.

Service Provider — Williams Digital

Client — Owner of The Big Chill

Signature

Signature

Printed Name

Printed Name

Date

Date